

Room Search & Contraband Log

HIQA STANDARD 3 · S.I. 674/2017 · CHILDREN FIRST ACT 2015 · UNCRC ARTICLE 16

A room search is an intrusion on a child's right to privacy (UNCRC Article 16). It must only be conducted where there is a **reasonable belief** that there is an immediate risk to the safety of the child or others, or that prohibited items are present. Every search must be authorised, documented on this form, and reviewed by the PIC.

⚠ Rights-Based Approach: Room searches must be proportionate, respectful, and conducted with the **minimum intrusion necessary**. The child must be informed before or immediately after the search (unless doing so would increase risk). Personal items such as diaries, letters, and photographs must **not** be read or removed unless they constitute evidence of harm. Tusla ACIMS inspectors will review this log for proportionality.

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Grounds for Search

A search may only be authorised on one or more of the following grounds:

- Reasonable suspicion of **illegal substances** (drugs, alcohol where prohibited)
- Reasonable suspicion of **weapons or sharp objects** capable of causing harm
- Reasonable suspicion of **stolen property**
- Concern about **self-harm materials** (ligatures, blades, hoarded medication)
- Concern about **fire-setting materials** (lighters, accelerants)
- Concern about items facilitating **exploitation** (unregistered phones, cash of unknown origin)
- Return from **absence / absconding** where risk is assessed as high

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Search Record

Search Ref #	Date	Time
Child / Young Person	DOB	Room / Area Searched
Question		Detail
Reason / grounds for search		
Authorised by (PIC / Deputy — name)		
Time of authorisation		
Child informed before search?		☐ Yes — time: _____ ☐ No — reason:
Child present during search?		☐ Yes ☐ No — reason:

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Search Conducted By

Staff Member 1 (conducting)	Role
Staff Member 2 (witness)	Role

Rule: A minimum of **two staff members** must be present. One conducts the search, one acts as witness. Where possible, staff should be the same gender as the child.

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Items Found

Item	Description / Quantity	Location Found	Action Taken
			☐ Confiscated ☐ Destroyed ☐ Handed to AGS ☐ Returned to child ☐ Stored securely
			☐ Confiscated ☐ Destroyed ☐ Handed to AGS ☐ Returned to child ☐ Stored securely
			☐ Confiscated ☐ Destroyed ☐ Handed to AGS ☐ Returned to child ☐ Stored securely

☐ No prohibited items found

If items confiscated — storage location: _____ Secure? ☐ Yes

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Notifications

Child informed after search (if not before)?	☐ Yes — time: _____ ☐ N/A (informed before)
Child's social worker notified?	☐ Yes — date/time: _____ ☐ N/A
Parent / guardian notified?	☐ Yes ☐ N/A — date/time: _____
An Garda Síochána notified?	☐ Yes — Ref: _____ ☐ N/A
NIMS / SEN required?	☐ Yes — Ref: _____ ☐ No
Entered on Restrictive Practice Register?	☐ Yes ☐ N/A (no physical intervention)

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Child Debrief

The child must be offered a debrief after every search. Record whether they accepted or declined.

Debrief offered?	☐ Yes — accepted ☐ Yes — declined ☐ Deferred (offer again)
Conducted by (not involved in search)	
Child's response / feelings about the search	
Complaint or concern raised by child?	☐ No ☐ Yes — detail:
Advocacy (EPIC) offered?	☐ Yes ☐ Previously aware

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PIC Review & Sign-off

Search justified and proportionate?	☐ Yes ☐ No — action:
Conducted respectfully and with minimum intrusion?	☐ Yes ☐ No — action:
Child's rights respected (privacy, dignity)?	☐ Yes ☐ No — action:
Risk assessment updated?	☐ Yes ☐ N/A
Care plan updated?	☐ Yes ☐ N/A
Practice concern identified?	☐ No ☐ Yes — referred to Director
Reported at governance meeting?	☐ Yes — date: _____

Conducting Staff Signature: _____ Date: _____

Witness Staff Signature: _____ Date: _____

PIC Review Signature: _____ Date: _____

Key Principle: Chosanta Management respects children's right to privacy. Room searches are a last resort and must always be proportionate, documented, and subject to management review.

Legislative Basis: HIQA Standards 2018 (Standard 3) · UNCRC Article 16 (right to privacy) · S.I. 674/2017 · Children First Act 2015

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